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Italy says no: the 2016 constitutional referendum and its consequences

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ABSTRACT
On 4 December 2016, Italians went to the polls to say yes or no in a popular referendum called by Prime Minister Matteo Renzi on his package of constitutional reforms. Turnout was very high: 65.5 per cent. The No vote scored an impressive victory: 59.1 per cent rejected those reforms; 40.9 per cent supported them. This article puts those reforms in the context of previous attempts to modify several articles of the Italian constitution. The authors analyze and criticize the substance of those reforms and explain their possible impact on the functioning of the Italian political system. The Yes and No alignments were somewhat diversified, while the Yes vote got a lot of support from an often curious combination of domestic and foreign bedfellows interested in the political stability of Renzi's government more than in any specific reform. Renzi's defeat led to his resignation. A new government was immediately formed. It is unclear when and whether other, different constitutional reforms will be formulated. The Italian political and institutional transition continues while once again attention is focused on the electoral law and on how to restructure the parties and the party system.

KEYWORDS Constitutional reforms; government; Partito Democratico; transition; electoral law

Premise

On 4 December 2016, Italians went to the polls for a referendum held to confirm or reject the constitutional reforms formulated by Matteo Renzi's government and approved by a parliamentary majority. Contrary to the referendums called to repeal laws that require an absolute majority of voters to go the polls, constitutional referendums do not need what is defined as a *quorum*. An absolute majority of voters is required to repeal a law approved by an absolute majority of parliamentarians, but the Italian constitution-makers decided that, when it comes to constitutional amendments and revisions, the voters who go the polls are in all likelihood interested in and informed about those changes and so ought to be rewarded and prevail over those who do not care and stay home.

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Table 1. Amendments to the Italian constitution since 1948.

Year	Article(s) amended	Object of the amendment	Final reading % approval
1963	56, 57, 60	Composition and length of term of the Chamber of Deputies and Senate	87.6
1963	57, 131	Constitution and institution of the Molise region	92.4
1967	135	Provisions on the Constitutional Court	95.4
1989	96, 134, 135	Crimes of ministers	80.3
1991	88	Dissolution of the Houses of Parliament	99.8
1992	79	Amnesty and pardon	99.8
1993	68	Indemnity and immunity of members of parliament	96.1
1999	121–123, 126	Direct election of the president of the region and regional statuary autonomy	90.1
1999	111	Fair trial principles	96.5
2000	48	Right to vote of Italian citizens living abroad	81.3
2001	56, 57	Number of deputies and senators representing Italian citizens abroad	89.2
2001	114–125, 127–130, 132	Powers of regions, provinces and municipalities	50.8
2003	51	Gender equality	97.7
2007	27	Abolition of the death penalty	97.9
2012	81	Introduction of the balanced budget in the constitution	83.9

The issue of constitutional reforms and their impact on the power of the Prime Minister and the functioning of the political system had become so important that the turnout reached 65.5 per cent, only 10 per cent less than the turnout of the February 2013 parliamentary elections. The numbers were quite impressive: 19,419,517 (59.1 per cent) voted No, while 13,432,208 voted Yes. Thus, the constitutional reforms were resoundingly rejected. In this article, we will put in context the long story of institutional and constitutional reforms in Italy, analyze the outcome of the referendum and assess the political and institutional consequences.[1]

The context

Between May 1974 and April 2016, Italy held sixty-seven referendums to repeal existing laws. The Yes vote has won twenty-three times; the No sixteen times. The Yes vote has also prevailed in twenty-seven of the twenty-eight elections in which the quorum, that is an absolute majority of voters going to the polls, was not attained. Leaving aside the choice between monarchy and republic on 2 June 1946, before the 4 December referendum, only two previous constitutional referendums had been held. In October 2001, the center-left succeeded in having voters approve its mediocre reform of provincial and regional governments and their relationships with the central state. In June 2006, the center-left,

which had just won the general elections, had an easy game in defeating the modifications of fifty-six articles of the Italian constitution out of 138 made a few months earlier by the center-right led by Silvio Berlusconi and Gianfranco Fini. In the first case, the turnout was 34 per cent because the center-right did not bother to go to the polls; in the second case, the turnout was 52 per cent. Finally, in 1989, at the same time as the elections of the European Parliament, Italy held a consultative referendum to endow the European Parliament with the powers to write a constitution for Europe. Turnout was very high (80.8 per cent) and those favorable were 88 per cent. In the light of these figures, it is impossible to agree with the claims made by Aldo Cazzullo (2016), who argues that all over Europe national referendums have become weapons used by the populists against the elites.[2] Referendums are and remain a democratic instrument that empowers voters.

The issue of institutional and constitutional reforms had made its irruption into the Italian political debate in the early 1980s. A bicameral committee was formed that produced important materials that parliament never took into consideration (this story is thoroughly told by Armaroli 1986). Two other committees followed in 1992–94 and in 1997–98, the second, chaired by Massimo D'Alema, being the most ambitious attempt to revise the form of the state and the model of parliamentary government (Russo 2015). For obvious partisan reasons, no agreement was ever reached and no reform ever made it through. Nonetheless, significant institutional and electoral reforms have been enacted, especially thanks to a wave of popular referendums held in 1993 that resulted in the elimination of three ministries, repeal of the law providing for the state financing of political parties, profound transformation of the proportional electoral law plus the approval of a new law for the popular election of the mayors and the presidents of provincial governments.[3]

The 1993 electoral law, called *Mattarellum*,[4] was then used in three general elections (1994, 1996, 2001), but jettisoned by the center-right in 2005 and replaced by a new one, dubbed *Porcellum* for its obvious partisan and manipulative features. It was a combination of proportional representation plus a seat bonus to be given to the party/coalition receiving the highest number of votes. It is important to mention these constitutional changes and all these institutional and electoral reforms because on too many occasions Prime Minister Matteo Renzi and his Minister of Institutional Reforms, Maria Elena Boschi, have accused parliamentarians and former and incumbent party leaders of not having done anything at all in the past thirty years. Their narrative simply does not fit with reality, as Pasquino has argued at some length (see Pasquino 2015), in particular with the reality of the constitutional modifications. As reported in Table 1, the Italian constitution has been amended fifteen times since 1948, usually with a large parliamentary consensus and involving very small parts of the constitutional text (on average, nearly three articles at a time).[5]

In any case, the impetus to launch these latest constitutional reforms did not come from a reflection on what went wrong in the past or from a systemic evaluation of what does not work in the Italian constitution and the political system. The impetus was totally contingent on an unexpected and unpredictable event. Thanks to the seat bonus mechanism, the Partito Democratico enjoyed a sizable parliamentary majority in the House of Deputies elected in February 2013, but no majority in the Senate (see Pasquino and Valbruzzi 2015). Hence it could not form a government. Also, because of its internal divisions, the Partito Democratico proved unable to elect the President of the Republic. In the midst of a political crisis that might also have become institutional, almost all party leaders begged the outgoing President Giorgio Napolitano to agree to be re-elected. In his acceptance speech, repeatedly punctuated by applause from all sectors of parliament, Napolitano lashed out at the inability of those parliamentarians to improve the functioning of the Italian political system and invited them to reform the electoral law and the Italian bicameral parliament. Napolitano's speech was often quoted by Renzi and Boschi in support both of the need to proceed to constitutional reforms and the very nature of the specific reforms they formulated. Since Napolitano threw his political weight behind the Yes vote in the referendum, there would be no reason to think otherwise. Nevertheless, we feel obliged to stress that at no point in time during his long political career and in his many institutional offices (Speaker of the House of Deputies, Minister of Internal Affairs and, indeed, President of the Republic) has Napolitano ever been a fervent advocate of constitutional reforms. Moreover, he had never precisely suggested which electoral law nor which model of Senate he preferred.

The reforms

Since in its sentence 1/2014 the Constitutional Court had declared unconstitutional the electoral law called *Porcellum*, the government proceeded to draft a new electoral law named *Italicum* that is not much different from the unconstitutional one. Though defined by Prime Minister Renzi as 'a very good law of which all of Europe will be envious and half Europe will imitate', once it became clear that its mechanisms offer the Five Star Movement the opportunity to win at the run-off (whose 'constitutionality' or otherwise and, indeed, the entire structure of the law, have been decisively challenged by the Constitutional Court) the *Italicum* was declared dead. It will have to be replaced by another law. Indeed, several proposals, among them a revival of the *Mattarellum*, have already been tossed around, but we do not have the space here to carry this particular analysis further.

The political philosophy of the constitutional reforms that were drafted and approved after a prolonged debate, many bitter parliamentary conflicts and significant reservations, has never been revealed. In truth, the kernel of the reforms was the attempt to simplify the institutional circuit and to speed up

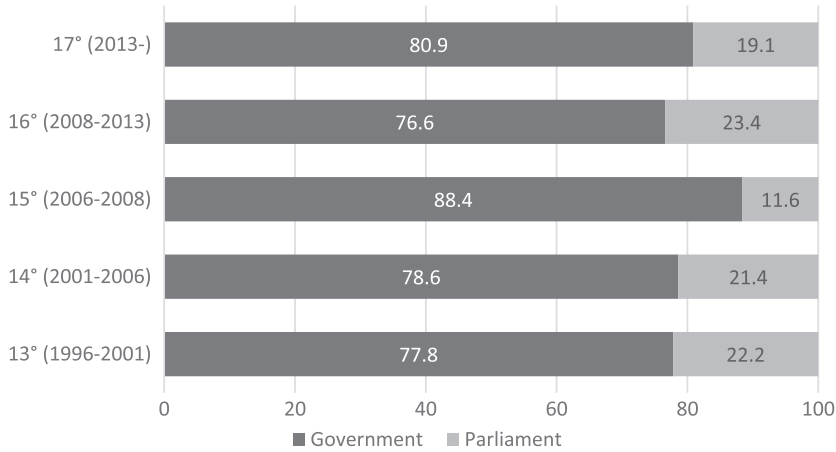

Figure 1. Bills approved in Italy since 1996 by sponsor (government or parliament), percentage values. *Source*: Authors' own calculations based on official data of the Chamber of Deputies and the Senate.

the legislative process. However, the Prime Minister and Minister Boschi have too often resorted to populist assertions to justify cutting the number of politicians (and their *poltrone*) and reducing the costs of politics. Whatever the means, the transformation of the Senate became the paramount goal to be pursued because it contained everything that the reformers were proud of. What they called 'the suicide' of 315 senators, who were to be replaced by ninety-five new senators designated by the regional councilors among themselves, plus one mayor per region (plus five appointed by the President of the Republic), was precisely meant to cut the 'costs of politics' since the new senators were to receive no stipends. Finally, the legislative and political power of the Senate was significantly curtailed. It could no longer offer a vote of confidence in the government or withdraw it.[6] However, it was given the very demanding task of evaluating public policies, one of the most difficult activities to be performed by any elected representative, even more so for politicians who had run for local rather than national office, and of dealing with all the legislation to do with Italy's relationships with the European Union. As to legislation, the new Senate was to have the same powers as the Chamber concerning electoral laws and constitutional reforms. All other bills were to be discussed and approved by the Chamber of Deputies, the Senate retaining the power only to examine them and to suggest modifications. Even in those cases, the Chamber of Deputies was granted the last word in the acceptance or rejection of what was proposed by the Senate.

An additional justification stood behind the reduction of the legislative role of the Senate (emphasized by Tsebelis 2017, although not in a totally convincing way): to speed up the process of approval of bills and to give the lower chamber

the central role in passing the legislation introduced by the government that was to be granted preferential treatment, a fast track. It is interesting, however, that, all the available data indicate that the Italian bicameral parliament has consistently approved more laws than the parliaments of France, Germany or the United Kingdom and, on average, in a lesser number of days. Moreover, Italian governments have always obtained what they wanted from their legislative assemblies whenever they knew what they wanted, and pursued their goals with determination. Between 78 and 88 per cent of the laws approved by the Italian bicameral parliament were bills introduced by the government (see Figure 1). This has been true also for Renzi's government (February 2014–December 2016). Finally, and quite contradictorily, the new Senate was meant to be a house giving representation to the regions exactly at a time when the regions, in the second block of the reforms, were deprived of much of their legislative power and a clause of state supremacy was introduced effectively granting the central government the power to interfere with most of the regional legislation. Moreover, since the new senators would be designated by the regional councilors 'in conformity with the choices made by the voters', in practice they would represent their parties, not their regions.[7]

The other two reforms concerned, first, the abolition of the Consiglio Nazionale dell'Economia e del Lavoro (CNEL), which had gradually lost all capability to provide advice to parliament and the government, and, second, the formulation of new rules and procedures for referendums and citizens' legislative propositions. Leaving aside the technical details, contrary to what the government maintained during the electoral campaign, raising the number of signatures required to submit citizens' legislative petitions to parliament without establishing any sanction[8] if parliament rejected them could by no means amount to increasing the power of Italian citizens, nor could it give them more influence on legislation.

We have seen that quite a number of referendums failed because the turnout did not reach the 50 per cent plus one threshold. In addition to the traditional referendums that are instigated when called by 500,000 voters and which require the above-quoted turnout, a new type of referendum was proposed. If citizens collected 800,000 signatures, the validity threshold would be reduced to 50 per cent of the percentage of voters in the most recent general elections. Since turnout for the February 2013 elections had been 75 per cent, the threshold for a referendum requested by 800,000 citizens would be 37.6 per cent. As was quickly pointed out, however, it would not be individual citizens but only very large associations, such as the unions, Confederazione Generale Italiana del Lavoro (CGIL) and Confederazione Italiana Sindacati Lavoratori (CISL), and Coldiretti (a small farmers' association), plus, perhaps, one or two parties that could muster enough strength to collect 800,000 signatures. Indeed, the Democratic Party was obliged to rely on Coldiretti to collect the 500,000 signatures needed to call the constitutional referendum. Due to the initial disengagement of the CGIL,

the different committees campaigning for a No vote were unable to get beyond 420,000 signatures, and as a result they forfeited any financial support from the state for their electoral activities.

Interestingly, or revealingly, the topic of the changes to the referendums and to citizens' legislative initiatives was considered of so little importance that it did not even appear in the title of the constitutional law and, as a consequence, of the referendum question:

> Approvate il testo della legge costituzionale concernente 'disposizioni per il superamento del bicameralismo paritario, la riduzione del numero dei parlamentari, il contenimento dei costi di funzionamento delle istituzioni, la soppressione del CNEL e la revisione del Titolo V della parte II della Costituzione', approvato dal Parlamento e pubblicato nella Gazzetta ufficiale n. 88 del 15 aprile 2016?[9]

Nevertheless, it was not so much the content of the question submitted to the voters that provoked a controversy, but the manner in which it was framed, in particular the way in which it grouped together all the modifications and asked for a single vote on all of the changes simultaneously. An appeal to the Corte di *Cassazione* was made in order to unpack the various items, but it was rejected on the grounds that the two previous constitutional referendums had combined several quite different items in just a single overarching question. This meant that the political debate and the voters' attention became focused essentially on the Senate and the powers of regional governments. While the propaganda of the government stressed that both reforms were necessary to provide more 'governability', the committees for a No vote argued that those reforms were significantly curtailing the power of the voters and their political representation at the same time that they were increasing the power of the government and the Prime Minister. In fact, the enhancement of governmental power would have been the combined effect of the constitutional reforms and the electoral law. The No supporters could stress that, surprisingly, the reformers had not even taken into consideration the most effective existing democratic mechanism for stabilizing the government and the Prime Minister: the constructive vote of no confidence.

Devised by the German constitution-makers in 1949 and imported by the Spaniards in their 1978 constitution, the constructive vote of no confidence requires that a head of government, elected by an absolute majority of parliamentarians belonging to the lower house, be replaced only if defeated by an absolute majority capable of electing within forty-eight hours a different head of government. Not by chance, this powerful mechanism can be considered positively responsible for the exceptional stability and the long tenure of German chancellors and Spanish presidents.[10] Renzi preferred that the Italian government be strengthened by the sizeable seat bonus allocated in the electoral law instead of providing a mechanism that the parliamentary opposition and several dissenters and 'rebels' could use transparently against the government and its head.

Table 2. Legislative process of the 2016 constitutional reform (absolute and percentage values).

Reading	*Approve*	*Reject*	*Abstain*	*Absent*	*On mission*
Senate 1°	183	0	4	114	14
(8 August 2014)	(58.1%)	(0.0%)	(1.3%)	(36.2%)	(4.4%)
Chamber 1°	357	125	7	120	21
(10 March 2015)	(56.7%)	(19.8%)	(1.1%)	(19.0%)	(3.4%)
Senate 2°	178	17	7	105	7
(13 October 2015)	(56.5%)	(5.4%)	(2.2%)	(33.3%)	(2.6%)
Chamber 2°	367	194	5	51	13
(11 January 2016)	(58.3%)	(30.8%)	(0.8%)	(8.1%)	(2.0%)
Senate 3°	180	112	1	8	14
(20 January 2016)	(57.1%)	(35.6%)	(0.3%)	(2.6%)	(4.4%)
Camera 3°	361	7	2	232	28
(12 April 2016)	(57.3%)	(1.1%)	(0.3%)	(36.8%)	(4.5%)
Mean (%)	*57.3%*	*15.5%*	*1.0%*	*22.7%*	*3.5%*

Source: authors' own re-elaboration from data provided by the websites of Chamber of Deputies and the Senate.

The accusation that, if approved, the constitutional reforms would open the way to an authoritarian drift was also frequently held up by many opponents of the reforms exactly because of the combined effect of the majority bonus provided by the electoral law and the curtailing of the institutional powers of the Senate. Other critics drew attention to the risk of a loss of direction that was the likely outcome of the lack of clarity of the reforms and the high potential for conflicts between the Chamber of Deputies and the new Senate as well as between the regions and the state.

The constitutional referendum and the Yes/No political alignments

Laws modifying the constitution must go through a double reading and approval by both houses. Three readings proved necessary because some changes were introduced both by the Chamber of Deputies and by the Senate. As shown in Table 2, the final text was approved by the Senate on 20 January 2016 (180 Yes; 112 No; 1 abstention) and by the Chamber on 12 April (361 Yes; 7 No; 2 abstentions: the opposition parties [Five Star Movement, Forza Italia, Northern League and Fratelli d'Italia] decided not to take part in the vote). If constitutional modifications are not approved by a two-thirds majority in both houses, they may be submitted to a popular referendum. The referendum is not compulsory, but fully optional. According to Art. 138, a constitutional referendum may be requested by one-fifth of the members of either house or by 500,000 voters or by five regional councils. There is no mention of the government. However, from the very beginning of the parliamentary procedure, both Prime Minister Renzi and Minister Boschi announced, and several times repeated, that they would call a referendum on their constitutional reforms. Both went so far as to declare that they would make it impossible for a two-thirds parliamentary majority to

approve their reforms because that majority would block the possibility of a constitutional referendum. The Prime Minister also added that, in case of defeat, he would immediately resign and leave politics altogether. It was not too difficult to read in Renzi's words a form of blackmail addressed to parliament and to the many Italian citizens who are tired of governmental instability and worried by its implications.[11]

Ostentatiously, the Prime Minister fully personalized his electoral campaign and in practice was asking for a vote on his person/role, in fact looking for a plebiscite. So much so that even the former President of the Republic, Giorgio Napolitano, having become, for the first time in his long political career, a staunch supporter of the constitutional reforms, felt obliged to make the critical comment that Renzi had 'perhaps engaged in an exaggerated political personalization'. In all likelihood, Renzi, who had not even been elected to parliament, was pursuing two goals. The institutional goal was a surplus of legitimization for his office and the government he was leading, though the legitimacy of Italian governments does not come from the popular vote, but from a parliamentary vote of confidence – a point that is too often disregarded. The political goal was to show to the opposition and, perhaps even more so, to those within the Partito Democratico who were challenging his reforms and his policies, that he enjoyed the support of a large majority of the Italian people. Indeed, during the electoral campaign he quite often resorted to populist arguments and appeals.

The electoral campaign was unusually bitter and protracted. In the hope of conquering some last-minute votes, the Prime Minister decided to choose the very last possible polling date, 4 December. What was largely lost was the substance of the reforms, their impact and their likely political and institutional consequences. Somewhat surprisingly, several outside key actors issued their support for Renzi and his 'ambitious, courageous' constitutional reforms: JP Morgan and Fitch, the *Financial Times* and the *Wall Street Journal*, late in the day the *Süddeutsche Zeitung* (while the *Economist* sharply criticized the constitutional reform), the US ambassador in Rome and US President Barack Obama in Washington, though somewhat tepidly, the president of the European Commission Jean-Claude Juncker, German Chancellor Angela Merkel and her powerful Minister of Finance Wolfgang Schäuble, and French President François Hollande.

The Yes vote could also count on the support of many associations: Confindustria (the National Association of Employers) and FIAT CEO Sergio Marchionne, Coldiretti and CISL (the former Christian Democratic trade union), the dailies *Il Sole 24 Ore*, *Il Foglio*, the *Corriere della Sera* and, less openly, but visibly, *la Repubblica*. Four days before the end of the electoral campaign, former Prime Minister Romano Prodi declared his own Yes vote. The most outspoken and prominent advocate of the constitutional reform was the former President of the Republic Giorgio Napolitano. Several former members of parliament,

among them three Speakers of the Chamber and the Senate, and a number of opinion-makers campaigned in favor of the reforms.[12]

On the side of the No vote, there were from the very beginning the National Association of Italian Partisans (ANPI), a wide variety of committees, the most important being Libertà e Giustizia, whose slogan was 'Let's Save the Constitution', and, of course, all the parties in the opposition: from the Five Star Movement to Berlusconi's Forza Italia, from the Northern League to Fratelli d'Italia. Belatedly, but forcefully, the CGIL (the leftist trade union) threw its weight into the campaign. Needless to add, the amount of time the public broadcasting communication system RAI gave to Renzi and his statements was entirely disproportionate.

The outcome

At virtually no point in time, according to all the surveys, did those saying they were going to vote Yes outnumber the No votes, but there was always a high percentage of voters who declared themselves undecided, unable or unwilling to decide. The last published poll by Nando Pagnoncelli (2016a)[13] came very close to the actual outcome. Among those who declared that they were definitely going to the polls, the No voters were 55 per cent vs 45 percent voting Yes. But 46.5 per cent of Italians were either unwilling to declare their vote[14] or inclined not to vote. Only 6.4 percent said they were undecided.

Somewhat surprisingly, on the night of the vote, almost at the outset, all exit polls gave a clear advantage to the No vote. The final tally was 59.1 per cent for the No vote, and 40.9 per cent for Yes (see table 3). The No vote had won in all Italian regions but three – Toscana and Emilia-Romagna, where the Democratic Party is not only electorally strong but also socially, economically and administratively deeply entrenched, and Trentino-Alto Adige, where former Christian Democrats are strong and the local party, the *SüdTiroler Volkspartei*, is similarly entrenched and has established a special relationship with Renzi's government. When more detailed scholarly analyses were conducted, two particularly striking phenomena appeared in full light. The Yes vote prevailed in those areas of Italy where the socio-economic conditions were good and satisfactory, in particular in terms of employment (see Figure 2). The No vote was large and widespread in areas, not only in the south, more badly hit by the economic crisis. Certainly, there are a multitude of factors behind the defeat of the constitutional reform put forward by Renzi's government, but perhaps the determinant element lies in the large gap existing between the overly optimistic narrative about the Italian economic recovery artificially created by the Prime Minster and the actual state of the economy. This gap, and especially its consequences for the result of the referendum, emerges clearly by analyzing the correlation between, on the one hand, the youth unemployment rate and, on the other, the percentage of voters rejecting Renzi's composite constitutional package of modifications.

Table 3. Result of the 2016 constitutional referendum, by region (absolute and percentage values).

Regions	Yes (%)	No (%)	Total (%)
Valle d'Aosta	30,569 (43.3)	40,116 (56.7)	77,717 (71.9)
Piemonte	1,054,749 (43.5)	1,368,801 (56.5)	2,446,664 (72.0)
Lombardia	2,452,936 (44.5)	3,058,210 (55.5)	5,552,510 (74.2)
Liguria	342,671 (39.9)	515,777 (60.1)	865,756 (69.7)
North-west	*3,880,925 (43.8)*	*4,982,904 (56.2)*	*8,942,647 (73.2)*
Veneto	1,078,561 (38.0)	1,756,466 (62.0)	2,856,049 (76.7)
Trentino Alto-Adige	305,322 (53.9)	261,473 (46.1)	792,504 (72.2)
Friuli-Venezia Giulia	267,379 (39.0)	417,732 (61.0)	690,717 (72.5)
North-east	*1,651,262 (40.4)*	*2,435,671 (59.6)*	*4,339,270 (79.3)*
Emilia-Romagna	1,262,484 (50.4)	1,242,992 (49.6)	2,526,230 (75.9)
Toscana	1,105,769 (52.5)	1,000,008 (47.5)	2,125,053 (74.5)
Marche	385,768 (44.9)	472,765 (55.1)	866,233 (72.8)
Umbria	240,346 (48.2)	251,908 (51.8)	496,406 (73.5)
Red regions	*2,994,367 (53.8)*	*2,967,673 (46.2)*	*6,013,922 (74.7)*
Lazio	1,108,768 (36.7)	1,914,397 (63.3)	3,044,673 (69.2)
Abruzzo	255,001 (35.6)	461,188 (64.4)	722,930 (68.7)
Sardegna	237,280 (27.8)	616,791 (72.2)	859,158 (62.5)
Central regions	*1,601,049 (34.9)*	*2,992,376 (65.1)*	*4,626,761 (67.7)*
Molise	63,695 (39.2)	98,728 (60.8)	164,038 (63.9)
Campania	839,692 (31.5)	1,827,768 (68.5)	2,689,070 (58.9)
Basilicata	98,924 (34.1)	191,081 (65.9)	293,546 (62.9)
Puglia	659,354 (32.8)	1,348,573 (67.2)	2,024,651 (61.7)
Calabria	276,214 (33.0)	561,726 (67.0)	845,775 (54.4)
Sicilia	642,713 (28.4)	1,620,095 (71.6)	2,284,254 (56.7)
South	*2,580,592 (31.4)*	*5,647,971 (68.6)*	*8,301,334 (67.6)*
Abroad	*722,915 (64.7)*	*394,408 (35.3)*	*1,246,342 (30.8)*
Total	*13,431,109 (40.9)*	*19,421,003 (59.1)*	*33,244,258 (65.5)*

Source: authors' own re-elaboration on official data provided by the Ministry of the Interior (http://elezionistorico.interno.it).

As shown in Figure 2, the No vote was large in those Italian provinces in which the youth unemployment rate reaches or goes above approximately the 40 per cent threshold, that is, where almost one young adult out of two is unemployed or in search of an occupation. From this standpoint, it is possible to argue that the 2016 constitutional referendum has had a strong *social* accent, meaning that a significant portion of the electorate decided to punish the government, taking into account both the aggregate state of the economy and their personal conditions of employment insecurity or vulnerability. As recently pointed out by Helgason and Mérola (Forthcoming, 3), occupation unemployment rates 'provide a salient cognitive heuristic, which strongly determines people's subjective employment insecurity, thus informing perceptions of the state of the aggregate economy and the potential for personal unemployment. Consequently, high and rising occupational unemployment leads to negative evaluations of economic performance and reduces the probability of supporting the incumbent government, regardless of the actual state of the overall economy'. In sum, the result of the referendum has been in large part the product of that special mixture of hasty personalization and strong politicization, which has transformed a

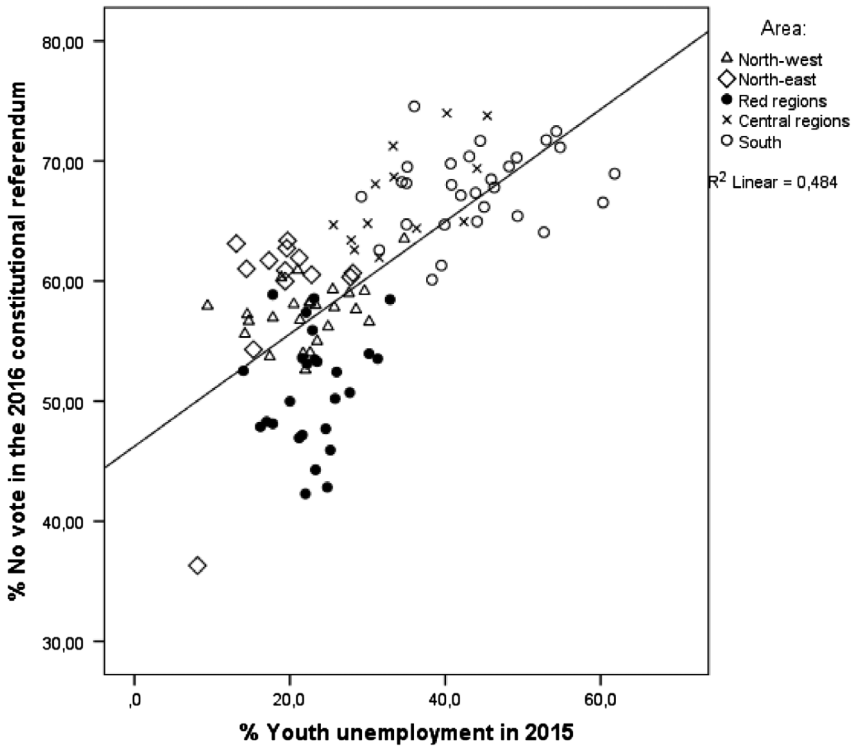

Figure 2. Percentage of the No vote by the rate (%) of youth unemployment in Italian provinces. *Source*: Istat (www.istat.it) for the youth unemployment rate (includes persons aged 15–29 years).

Note: The subdivision for the five macro-regions is the following: 'north-west' (Piemonte, Valle d'Aosta, Lombardia, Liguria), 'north-east' (Veneto, Trentino Alto-Adige, Friuli-Venezia Giulia), 'red regions' (Emilia-Romagna, Toscana, Umbria, Marche), 'central regions' (Lazio, Abruzzo, Sardegna), 'south' (Molise, Campania, Basilicata, Puglia, Calabria, Sicilia).

'technical' constitutional referendum into a sort of mid-term or, more precisely, 'end-of-term' election.

Looking further at the social meaning of the vote, the most spectacular difference can be found in the voting behavior of three age groups. As shown in figure. 3, 81 per cent of those aged between 18 and 34, and 67 per cent of those aged between 35 and 54 voted No, while 53 per cent of those above 55 years of age voted Yes.[15] Interestingly, the Prime Minister, who wanted to 'scrap' the older generations of politicians, especially but not only those who had opposed him in the Partito Democratico, got a majority of favorable votes from older voters. A plausible explanation is that these voters were more worried by political instability than the younger voters. Renzi's aggressive rhetoric stressing that the time had come for Italy to shape a society based on the needs and the contributions of the young generations was not considered credible and was

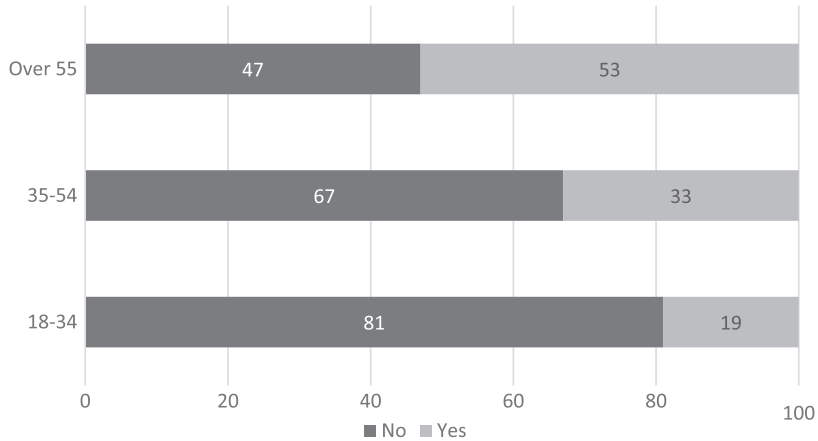

Figure 3. Vote in the 2016 constitutional referendum (percentage values). *Source*: Quorum (www.qourumsas.it).
Note: Survey conducted with a combined CATI (Computer Assisted Telephone Interviewing) and CAWI (Computer Assisted Web Interviewing) method (4 December 2016). The sample (N = 1,500) is representative of the overall Italian electorate. Confidence level at 95 per cent with a margin of error of ± 2.3 per cent. For more details, see www.sondaggipoliticoelettorali.it.

resoundingly rejected by vast majorities of those same generations.[16] The outcome of the vote was crystal clear. Undeniably, a sizable majority of Italians had not considered the constitutional reforms formulated by Renzi's government and by Minister Boschi to be positive. Of course, the No vote also contained a rejection of the Prime Minister, his (lack of) style, his plebiscitary appeal and his most controversial policies: the Jobs Act and the so-called 'Buona Scuola', both affecting the youngsters much more than the older generations.

The referendum vote was also a partisan vote. The title of the article by Pagnoncelli (2016b),[17] most certainly not of his making, does not do full justice to the Five Star Movement whose voters have shown the highest party discipline and cohesion. Ninety per cent of those who had voted for the Five Star Movement at the European elections cast a No vote in the referendum. With their 89 per cent No votes, Northern League voters came very close, while almost 20 per cent of the voters for the Democratic Party 'disobeyed' and cast a No vote. Though one of his closest collaborators has maintained that the 40 per cent of votes cast for the Yes was, in fact, the electoral patrimony of the leader of the PD, a stepping-stone for future elections, Renzi accepted the defeat and resigned from his office of Prime Minister immediately after the vote. He kept half his word since he had promised, if defeated, to go home: 'there are other things to do in life'.[18] Contradicting himself not for the first time, he decided to continue as secretary of the PD, presumably in order both to determine the formation of the successor government and to guide the party to its next convention.[19]

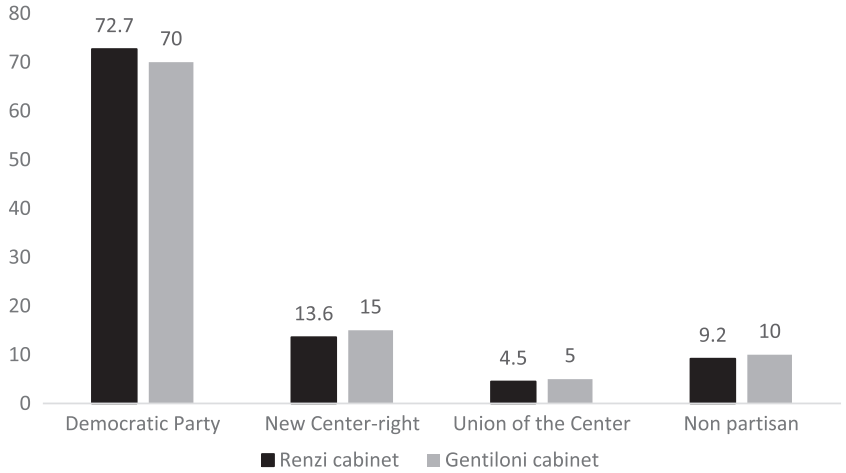

Figure 4. Partisan composition of Renzi and Gentiloni cabinets (percentage of ministries controlled by each governing party).

Political and institutional consequences

Before evaluating the political and institutional consequences of the vote, one premise is absolutely necessary. Contrary to the many exaggerated preoccupations for the reaction of the markets had the No alignment won the referendum, the day after and, by now, we can say several weeks and months after, there followed no collapse of the Italian economy, no convulsions in the stock market, no panic among consumers, investors, bankers and small savers. The most feared of all the indicators of the state of the Italian economy – that is, the spread between Italian and German state bonds – remained at practically the same, relatively low level. International markets reacted in quite a reasonable way. It was again up to politics and to the party leaders and top Italian authorities to deal with the political and institutional consequences of the failed referendum.

It is highly debatable whether the defeated constitutional reforms might have produced an improvement in the working of the Italian political system. What is certain is that the popular rejection of those reforms is not plunging the political system into a dangerous crisis. All the rules, procedures, institutions that, notwithstanding several criticisms and complaints,[20] had served Italy reasonably well, seem set to continue as they have done for decades, leading the country, among other things, to become the eighth industrial power in the world. No return to the past, no worsening of Italian political life, but continuity plus one proviso was the outcome. The proviso is that all participants, among the proponents and the opponents of the reforms, have had the possibility to learn what can and should be done jointly – and that means not necessarily only minor and easily made changes – in order to truly improve the functioning of

the Italian institutions. Of course, a pause is needed before starting again, but the amount of knowledge acquired should not be underestimated or dispersed.

Renzi's due resignation and the formation of a new government were at the same time a political and an institutional consequence of the referendum. Sadly, his Minister for Institutional Reforms, Maria Elena Boschi, pleaded to stay in the government (as Undersecretary to the Presidency of the Council of Ministers). She was replaced by Anna Finocchiaro, Chairwoman of the Committee on Constitutional Affairs of the Senate, who shares responsibility for the poor quality of the rejected reforms. No lesson seems to have been learned by some protagonists. The quick solution of the governmental crisis was obtained at a price. Extremely few changes were made to the composition of the government. Led by Paolo Gentiloni, the former Minister of Foreign Affairs, the new government is in fact almost an exact copy of its predecessor. As Figure 4 makes clear, the balance of power, in terms of ministries controlled by the allied parties (PD, New Center-right and Union of the Center), has remained virtually unchanged. Perhaps it could not have been otherwise, since the Democratic Party has a majority of seats in the Chamber of Deputies and can rely in the Senate on the support of a couple of small parties interested in retaining all the perks deriving from their participation in the government. In substance, the formation of the new cabinet implied just a marginal reshuffle or, better, a game of musical chairs within the outgoing cabinet, with the only exception of the premiership, which passed from Renzi to one of his most loyal supporters in government.

Early snap elections are not possible because no electoral law exists at this point in time. Most certainly influenced by the type of electoral law that will have to be elaborated, the future of Italian politics will be in the hands of the Democratic Party and, to a lesser extent, those of the Five Star Movement (Tronconi 2015 provides the best analysis of the organization and the 'ideology' of the Movement so far), which has become a formidable and dreadful challenger.

As to long-term institutional consequences, contrary to what some scholars (namely,Ceccanti 2016, in an essay written for electoral purposes) insist in stating, the so-called Italian 'transition' that began between 1992 and 1994 will not be led to a successful completion exclusively by constitutional reforms, even less so when those reforms are of dubious quality. The determining factor for the opening of the transition was the 1993 referendum on the electoral law. The impact of the new electoral law, labeled *Mattarellum*, was all the greater because the most important parties – the DC (Democrazia Cristiana), the PCI (Partito Comunista Italiano) and the PSI (Partito Socialista Italiano) – had already entered into their terminal crisis contributing to the collapse of the entire party system. To a large extent, the cornerstone of the so-called First Republic (in practice, no new Republic has made its appearance so far) was the proportional electoral system. Also, for better or worse, between 1946 and 1994 the protagonists of Italian politics had been the political parties. Their decline weakened

the Republic. The organizations that replaced them have never succeeded in consolidating themselves. A small crowd of personalist parties (Pasquino 2014) are a poor surrogate for the strong class-based and confessional parties of the 'First' Republic.

Political scientists know that institutional reforms by themselves cannot improve the functioning of any political system unless they are accompanied by a fair, decent and competitive electoral law and by the restructuring of the party system. Neither is in sight. Hence, the Italian transition, characterized by clashes and conflicts on the very rules of the game, is bound to continue. It will not be brought to a close by imposition from above by one single actor, no matter how powerful. The lesson to be learned, then, is that the Italian transition will not reach a happy ending unless, first, a non-partisan electoral law can be framed and accepted by a large majority of the protagonists;[21] second, that a stable party alignment comes into being. In the wake of the constitutional referendum, neither outcome seems to be near.

Notes

1. Focused analyses and overall interpretations can be found in Pritoni, Valbruzzi and Vignati (2017).
2. This editorial was one of the (too) many articles published by the *Corriere della Sera* supporting and advocating a Yes vote. Of course, it also made reference to Brexit.
3. Approved by parliament under the threat of a referendum, this law is almost unanimously considered excellent. It has given major power to the voters and has significantly contributed to the stability of local governments.
4. Dubbed *Mattarellum* by Giovanni Sartori because its rapporteur was Sergio Mattarella (elected President of the Republic on 3 February 2015), the electoral law provided for the election of three-fourths of parliamentarians in single-member districts and one-fourth through proportional representation.
5. More precisely, since 1948 the procedure established by Art. 138 has been used to approve thirty-five constitutional laws, but only fifteen of which are constitutional amendments (four approved before 1990 and eleven thereafter). More details can be found in Groppi (2013) and Fusaro (2011).
6. Throughout the entire life of the Republic, only one government was defeated by a vote of no confidence in the Senate: Romano Prodi's in January 2008. To be sure, only one government suffered the same outcome in the House of Deputies: Romano Prodi's in October 1998. Both occurrences warrant more research.
7. The second House of Germany, the Bundesrat, is made up of sixty-nine members designated by the majorities of each Land who, therefore, truly represent their Land; no representation is given to the minorities. Though speaking against a return to proportionality, the Italian reformers of the Senate were doing just that: allocating seats to the parties according to proportional criteria.
8. In the past, some lawmakers have argued that the proponents of a citizens' initiative that had not even been taken into consideration by parliament should have had the opportunity to transform it into a referendum request.
9. The translation of the referendum question is the following: 'Do you approve the text of the constitutional law concerning "provisions for overcoming equal

bicameralism, reducing the number of members of parliament, limiting the operating costs of the institutions, the suppression of the CNEL and the revision of Title V of Part II of the constitution" approved by parliament and published in the Official Gazette no. 88 of 15 April 2016?'.

10. Not surprisingly, but remarkably, Germany since 1949 and Spain since 1982 have had the lowest number of heads of government and can legitimately claim the two longest lasting heads of government of all parliamentary democracies: Helmut Kohl 1982–98 and Felipe Gonzales 1982–96.
11. The disease of instability did not affect Renzi's government (22 February 2014–12 December 2016), which, at the time of his due resignation, had stayed in office for 1,019 days, preceded only by Berlusconi II (1,409 days), Berlusconi IV (1,283 days) and Craxi I (1,058 days).
12. Our criticism of their motivations, often based on poor knowledge of the reforms, can be found in Pasquino (2016).
13. Nando Pagnoncelli is one of the most reliable Italian pollsters.
14. The unwillingness of the Italians to disclose their vote has often had something to do with their perception of what was considered a more acceptable option in line with the public mood and the pollsters. Once upon a time, the vote for the Communist Party was underestimated. Then it was the turn of the vote for the Christian Democrats. The vote for Berlusconi was rarely explicitly declared. In the case of the constitutional referendum, it is likely that many voters realized that the No vote was somewhat not in the mainstream. Therefore, they chose either not to declare their vote or to say that they had not decided. Interestingly, in the same survey Pagnoncelli discovered that the knowledge of the reforms that had been made had significantly increased over time from 44 per cent to a whopping 63 per cent of voters stating that they considered themselves well informed of the overall substance and even of the details. Indeed, there was a clear correspondence between increase of knowledge and growth of the No vote.
15. 'La carica dei giovani boccia la riforma. I favorevoli avanti solo tra gli over 65', *Corriere della Sera*, 6 December 2016, 13.
16. All attempts to classify the Italian referendum in the same category as Brexit and Trump's election as if it were a reaction of angry, not well-educated, older white men against the elites is misplaced and bound to fail. On the contrary, too many elites, not only among the political ones, expressed a Yes vote. The No vote by the youngsters was, among other things, also against what the incumbent government was doing and saying.
17. The title, 'Elettori PD fedeli, centristi divisi. Uno su quattro di FI ha votato Sì', conveys a lot of disinformation. The most faithful voters, well deserving a place in the title, have been those for the Five Star Movement. The fact that one fifth of the PD voters decided to vote No is worth underlining. Not known for their loyalty to the party, what is surprising is not that one fourth of Forza Italia voters chose a No vote, but that 75 per cent of them followed Berlusconi's somewhat late recommendation to vote No.
18. 'Considererei conclusa la mia esperienza politica': Renzi's speech in front of the Senate, 20 January 2016.
19. Not to be discounted is that by remaining as secretary of the Partito Democratico, in the case of early elections, Renzi will have a major role in drafting the lists of candidates for parliament.
20. Some of those criticisms and many of the complaints were most convincingly addressed to the political class and its rather poor quality. Only to a minor extent can well-drafted institutional reforms dramatically improve the selection and

quality of political actors. This ambitious goal was achieved by the institutions and the electoral system of the Fifth French Republic.

21. Both the 2005 *Porcellum* and the 2014 *Italicum* are highly partisan laws formulated not with the aim of giving power to the voters and political representation to the citizens, but to concentrate power in the hands of party leaders and to give undue advantages to those of them who drafted the law.

Disclosure statement

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